

UNIVERSITY NDA - STUDENT WORK EXPERIENCE AGREEMENT

Parties	
Between:	
And:	University of Auckland, a university constituted under the University of Auckland Act 1961 and a tertiary education provider under the Education and Training Act 2020, of 22 Princes Street, Auckland, New Zealand with email address [contracts@auckland.ac.nz] (the "University");
Collectively:	the "parties"

Background	The University has students enrolled for a course for which participation in a real-world project is required. has agreed that certain students may participate in the Project. In connection with the Project, the University will provide academic oversight and support through the University Personnel. For that purpose, or the relevant students may disclose Confidential Information to the University for the Permitted Purpose. agrees to make Confidential Information available to the University on the terms of this agreement (the "Agreement").
Confidential Information	means in relation to the Project: - all information of whatever kind or nature that the University obtains from (and/or is granted access to by) or a student in connection with this Agreement, whether or not the information is: - in tangible or documented form; or - marked or identified as being proprietary to or under the control of - all notes, records or copies of such information made by the University.
Effective Date:	13 April 2026
Expiry Date:	The end date of the relevant University course
Permitted Purpose:	Enabling the University, through the University Personnel, to supervise, support and engage with the Project
Project:	An inventory analysis project as agreed as part of work experience with the relevant students for a term of 10 weeks commencing on the Effective Date
University Personnel:	

Agreement	The parties agree as follows:
1. UNIVERSITY'S OBLIGATIONS 1.1. Undertakings: The University will: (a) treat the Confidential Information as confidential and commercially sensitive information of (b) not use, copy, reproduce or modify the Confidential Information (or permit it to be used, copied, reproduced or modified) for any purpose other than the Permitted Purpose, without the express written authorisation of	

	(c) not disclose the Confidential Information, except in accordance with clause 1.3 or with the express written authorisation of [REDACTED] and (d) put in place and maintain reasonable security measures to protect the Confidential Information from unauthorised use or access, which are no less than the security measures that it applies to its own Confidential Information.
1.2.	Continuing obligations: The University's obligations of confidentiality and non-use under this Agreement survive expiry or termination of this Agreement for a period of five (5) . The release of part of the Confidential Information by [REDACTED] into the public domain will not of itself cause the University's obligations under this Agreement to cease in respect of any Confidential Information that has not entered the public domain.
1.3.	Permitted disclosure: The University may disclose Confidential Information to the University Personnel provided that: (a) the University Personnel have entered into legally binding confidentiality obligations in favour of the University (including under any employment agreement) on terms equivalent to the University's obligations to [REDACTED] under this Agreement; and (b) the University must ensure that the University Personnel do not do or omit to do anything which, if done or omitted to be done by the University, would constitute a breach of this Agreement and the University will remain responsible for any acts or omissions of a University Personnel relating to Confidential Information.
1.4.	Exceptions to obligations: The provisions of clause 1.1 will not apply to Confidential Information that the University can conclusively demonstrate by written evidence: (a) is independently acquired or developed by the University without breaching any of the University's obligations under this Agreement and without use of the Confidential Information; (b) is subsequently disclosed to the University, without any obligations of confidence, by a third party who has not derived it directly or indirectly from [REDACTED] or (c) is or becomes public knowledge, other than as a result of any fault of the relevant student, the University or its permitted discloses. (d) is required to be disclosed to the courts of any competent jurisdiction, or to any government regulatory agency or financial authority, provided that the University will: (i) immediately inform [REDACTED] that such a requirement has arisen; and (ii) at [REDACTED] request seek to persuade the court, agency or authority to have the information treated in a confidential manner (where this is possible under the court's, agency's or authority's procedures).
	2. OWNERSHIP AND INTELLECTUAL PROPERTY RIGHTS
2.1.	As between the parties, [REDACTED] will retain sole ownership of all Confidential Information and all intellectual property rights in the Confidential Information.
	3. RETURN OF CONFIDENTIAL INFORMATION
3.1.	Return: At [REDACTED] written request, the University will promptly, at [REDACTED] election, return to [REDACTED] or destroy or erase, or procure the destruction or erasure of, any or all of the Confidential Information, except as reasonably required by the University or its permitted discloses' for archival, audit, legal or regulatory purposes.
3.2.	Upon the return to [REDACTED] or destruction (as the case may be) of all such Confidential Information, the University will provide to [REDACTED] on request a written confirmation stating that the Confidential Information returned or destroyed comprises all the Confidential Information in the University's possession or control.
	4. NO IMPLIED RIGHTS



4.1.	This Agreement will not be construed to require [REDACTED] to disclose any Confidential Information to the University. No warranty or representation, express or implied, is given as to the accuracy, efficacy, completeness or capabilities of any materials or information provided under this Agreement.
5.	REMEDY
5.1.	The parties acknowledge that monetary damages alone may be an inadequate remedy for breach of the University's obligations under this Agreement. In addition to any other remedy that may be available in law or equity, [REDACTED] may be entitled to interlocutory injunctive relief to prevent a breach of this Agreement and to compel specific performance of this Agreement.
6.	LIABILITY
6.1.	The maximum aggregate liability of each party to the other party under or in connection with this Agreement is limited to [REDACTED]
7.	GENERAL
7.1.	No assignment: The University may not assign, transfer, novate or subcontract this Agreement or any rights or obligations under this Agreement, without the prior written consent of [REDACTED]
7.2.	Waiver: No failure or delay by either party in exercising any right, power or privilege under this Agreement will operate as a waiver of such right, power or privilege. No single or partial exercise will preclude any other or further exercise or the exercise of any right, power or privilege under this Agreement.
7.3.	Governing law: This Agreement will be subject to and construed and interpreted in accordance with the laws of New Zealand and will be subject to the non-exclusive jurisdiction of the Courts of New Zealand.

Signed by:		
[REDACTED]		University of Auckland
Name and position		Name and position
Date:		Date:
Signature		Signature:

